

CHAPTER 7.

An Act to grant certain duties of Customs and Inland Revenue, to alter other duties, and to amend the Law relating to Customs and Inland Revenue and the National Debt, and to make other provision for the financial arrangements of the year.

[9th April 1900.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

CUSTOMS AND EXCISE.

Increased
duty on tea.

1. In lieu of the duty of Customs payable on tea imported into Great Britain or Ireland there shall, as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one, be charged, levied, and paid the following duty (that is to say):—

Tea, the pound, Sixpence.

Addition to
duties on
tobacco.

2.—(1.) In addition to the duties of Customs payable on tobacco imported into Great Britain or Ireland there shall, as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one, be charged, levied, and paid, the following duties (that is to say):—

	£	s.	d.
Tobacco manufactured, viz. :—			
Cigars - - - - - the lb.	0	0	6
Cavendish or Negrohead - - the lb.	0	0	6
Cavendish or Negrohead, manu- factured in bond - - - the lb.	0	0	5
Other manufactured tobacco - the lb.	0	0	5
Snuff containing more than 13 lbs. of moisture in every 100 lbs. weight thereof - - - the lb.	0	0	5
Snuff not containing more than 13 lbs. of moisture in every 100 lbs. weight thereof - - the lb.	0	0	6

£ s. d.

Tobacco, unmanufactured, viz.:—

Containing 10 lbs. or more of moisture in every 100 lbs. weight thereof - - -	the lb.	0	0	4
Containing less than 10 lbs. of moisture in every 100 lbs. weight thereof - - -	the lb.	0	0	4

(2.) Drawback allowed under section one of the Manufactured Tobacco Act, 1863, as extended by any subsequent Act, on tobacco exported from Great Britain or Ireland, or deposited in a bonded or Queen's warehouse shall, as from the sixth day of May nineteen hundred until the first day of October nineteen hundred and one, be allowed at the rate of three shillings and a penny upon every pound weight. 26 & 27 Vict.
c. 7.

3.—(1.) In addition to the duties of Customs payable on beer of the descriptions called mum, spruce, or black beer, imported into Great Britain or Ireland, there shall, as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one, be charged, levied, and paid, the following duties (that is to say):— Addition to
Customs
duties on
special kinds
of beer.

£ s. d.

For every thirty-six gallons of beer where the worts thereof are, or were before fermentation, of a specific gravity—

Not exceeding one thousand two hundred and fifteen degrees - - -	-	0	4	0
Exceeding one thousand two hundred and fifteen degrees - - -	-	0	4	8

(2.) This section shall extend to Berlin white beer, and other preparations, whether fermented or not fermented, of a character similar to mum, spruce, or black beer.

4. In addition to the duties of Customs payable on every description of beer (other than is specified in the last preceding section) imported into Great Britain or Ireland, there shall, as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one, be charged, levied, and paid the following duty (that is to say):— Addition to
Customs
duty on all
other beer.

£ s. d.

For every thirty-six gallons where the worts thereof were before fermentation of a specific gravity of one thousand and fifty-five degrees 0 1 0

and there shall be allowed and paid in and for the same period in respect of all such beer a similar addition to the drawback granted on exportation, shipment for use as stores, or removal to the Isle of Man, by section four of the Customs and Inland Revenue Act, 1881; 44 & 45 Vict.
c. 12.

And so as to both duty and drawback, in proportion for any difference in gravity.

Additional
duties of
Customs on
spirits.

5. In addition to the duties of Customs now payable on spirits imported into Great Britain or Ireland, there shall, as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one, be charged, levied, and paid the following duties (that is to say):—

	£	s.	d.
For every gallon, computed at proof, of spirits of any description (except perfumed spirits), including naphtha or methylic alcohol, purified so as to be potable, and mixtures and preparations containing spirits - - - - -	0	0	6
For every gallon of perfumed spirits - - - - -	0	0	10
For every gallon of liqueurs, cordials, mixtures, and other preparations entered in such a manner as to indicate that the strength is not to be tested - - - - -	0	0	8

Alteration
of Customs
duties on
certain goods
containing
spirits.

And the duties of Customs on the articles herein-after mentioned, being articles in which spirit is contained, or in the manufacture of which spirit is used, shall be proportionately increased, and there shall accordingly, as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one, be charged, levied, and paid the following duties (that is to say):—

	£	s.	d.
Chloral hydrate - - - - - the pound	0	1	4
Chloroform - - - - - the pound	0	3	3
Collodion - - - - - the gallon	1	6	3
Ether, acetic - - - - - the pound	0	1	11
Ether, butyric - - - - - the gallon	0	16	5
Ether, sulphuric - - - - - the gallon	1	7	5
Ethyl, iodide of - - - - - the gallon	0	14	3
Ethyl, bromide - - - - - the pound	0	1	1
Ethyl, chloride - - - - - the gallon	0	16	5

This section shall not affect the continuance after the first day of August nineteen hundred and one of the duties existing prior to this section taking effect.

Addition to
excise duty
on beer.

6. In addition to the duty of excise payable in respect of beer brewed in the United Kingdom there shall, as from the sixth day of March nineteen hundred until the first day of August nineteen hundred and one, be charged, levied, and paid—

For every thirty-six gallons of worts of a specific gravity of one thousand and fifty-five degrees, the duty of one shilling, and in addition to the drawback of excise otherwise payable in respect of beer exported from the United Kingdom as merchandise or shipped for use as ship's stores there shall be allowed and paid in respect of beer brewed in the United Kingdom, between the fifth day of March nineteen hundred and the first day of August nineteen hundred and one—

For every thirty-six gallons of beer of an original gravity of one thousand and fifty-five degrees, the drawback of one shilling, and so as to both duty and drawback in proportion for any difference in quantity or gravity.

7. In addition to the duty of excise payable for every gallon computed at proof of spirits distilled in the United Kingdom there shall, as from the sixth day of March, nineteen hundred until the first day of August nineteen hundred and one, be charged, levied, and paid the duty of sixpence, and so in proportion for any less quantity.

Addition
to excise
duty on
spirits.

8. Section twenty of the Customs Consolidation Act, 1876 (which has reference to the effect of changes of duty on existing contracts), shall apply to the imposition of new duties as well as to increases, decreases, or repeals, and as so amended shall apply to duties of excise as well as to duties of customs, with the substitution in the case of the excise duty on beer of the time of the charge of the duty for the time of the clearance and delivery from the warehouse.

Amendment
and exten-
sion of
39 & 40 Vict.
c. 36, s. 20.

9. The duty to be paid on goods or commodities deposited in a customs or excise warehouse is hereby declared to be the duty chargeable at the date of the actual removal of those goods or commodities from the warehouse, and if before that date any sums shall have been paid in respect of duty, the difference (if any) between the sums so paid and the actual duty chargeable shall be paid or repaid, as the case may be.

Duty on
warehoused
goods.

PART II.

STAMPS.

10. A conveyance on sale made for any consideration in respect whereof it is chargeable with ad valorem duty, and in further consideration of a covenant by the purchaser to make, or of his having previously made, any substantial improvement of or addition to the property conveyed to him, or of any covenant relating to the subject matter of the conveyance, is not chargeable, and shall be deemed not to have been chargeable, with any duty in respect of such further consideration.

Conveyances
on sale.

PART III.

DEATH DUTIES.

11.—(1.) In the case of every person dying after the thirty-first day of March nineteen hundred, property whether real or personal in which the deceased person or any other person had an estate or interest limited to cease on the death of the deceased shall, for the purpose of the Finance Act, 1894, and the Acts amending that Act, be deemed to pass on the death of the deceased, notwithstanding that that estate or interest has been surrendered, assured, divested, or otherwise disposed of, whether for value or not, to or for the benefit of any person entitled to an estate or interest in remainder or reversion in such property, unless that surrender, assurance, divesting, or disposition was bonâ fide made or effected twelve months before the death of the deceased, and bonâ fide possession and enjoyment of the property was assumed thereunder immediately

Amendment
of 57 & 58
Vict. c. 30.
as to property
passing on
death.

upon the surrender, assurance, divesting, or disposition, and thenceforward retained to the entire exclusion of the person who had the estate or interest limited to cease as aforesaid, and of any benefit to him by contract or otherwise.

(2.) This section shall *inter alia* apply in Scotland to the conveyance or discharge of any life rent in favour of the fiar, or to the propulsi^on of the fee under any simple or tailzied destination.

Amendment
of 57 & 58
Vict. c. 30.
s. 4, as to
aggregation.

12.—(1.) The exclusion enacted by the proviso to section four of the Finance Act, 1894, of property from aggregation shall in the case of every person dying after the passing of this Act cease to have effect, except as regards property in which the deceased never had an interest.

Provided that where an interest in expectancy (within the meaning of Part I. of the Finance Act, 1894) in any property has before the passing of this Act been *bonâ fide* sold or mortgaged for full consideration in money or money's worth, then no other duty on such property shall be payable by the purchaser or mortgagee when the interest falls into possession than would have been payable if this section had not passed; and in the case of a mortgage any higher duty payable by the mortgagor shall rank as a charge subsequent to that of the mortgagee.

(2.) Where settled property passes, or is deemed to pass, on the death of a person dying after the passing of this Act under a disposition made by a person dying before the commencement of Part I. of the Finance Act, 1894, and such property would, if the disponent had died after the commencement of the said Part, have been liable to Estate duty upon his death, the aggregation of such property, with other property passing upon the first-mentioned death, shall not operate to enhance the rate of duty payable either upon the settled property or upon any other property so passing by more than one half per cent. in excess of the rate at which duty would have been payable if such settled property had been treated as an estate by itself.

Amendment
of 59 & 60
Vict. c. 28.
s. 17, as to
exclusion
of fractions
from value.

13.—(1.) For the purpose of determining the rate and the amount of duty, the exclusion under section seventeen of the Finance Act, 1896, of any fraction from the principal value of the estate shall in the case of every person dying after the passing of this Act cease to have effect.

(2.) The Commissioners of Inland Revenue may, if they think fit, accept a statement by or on behalf of any accountable person as a correction of any Inland Revenue affidavit or account within the meaning of Part I. of the Finance Act, 1894, for the purposes of that Act and the Acts amending that Act, without requiring that statement to be verified on oath.

Remission of
death duties
in case of
persons
killed in war.

14.—(1.) Where any person dies from wounds inflicted, accident occurring, or disease contracted, within twelve months before death, while on active service against an enemy, whether on sea or land, and was, when the wounds were inflicted, the accident occurred, or the disease was contracted, either subject to the

Naval Discipline Act or subject to military law, whether as an officer, non-commissioned officer, or soldier, under Part V. of the Army Act, the Treasury may, if they think fit, on the recommendation of the Secretary of State or of the Admiralty, as the case requires, remit, or in the case of duty already paid repay, up to an amount not exceeding one hundred and fifty pounds in any one case, the whole or any part of the death duties (within the meaning of subsection three of section thirteen of the Finance Act, 1894) leviable in respect of property passing upon the death of the deceased to his widow or lineal descendants if the total value for the purpose of estate duty of the property so passing does not exceed five thousand pounds.

57 & 58 Vict.
c. 30.

(2.) This section shall take effect in the case of any person dying since the eleventh day of October one thousand eight hundred and ninety-nine.

PART IV.

INCOME TAX.

15.—(1.) Income tax for the year beginning on the sixth day of April nineteen hundred shall be charged at the rate of one shilling.

Income tax
for 1900—
1901.

(2.) All such enactments relating to income tax as were in force on the fifth day of April nineteen hundred shall have full force and effect with respect to the duty of income tax hereby granted.

(3.) The annual value of any property, which has been adopted for the purpose either of income tax under Schedules A. and B. in the Income Tax Act, 1853, or of inhabited house duty, during the year ending on the fifth day of April nineteen hundred, shall be taken as the annual value of such property for the same purpose during the next subsequent year: provided that this section—

16 & 17 Vict.
c. 34.

(a) so far as respects the duty on inhabited houses in Scotland, shall be construed with the substitution of the twenty-fourth day of May for the fifth day of April; and

(b) shall not apply to the metropolis as defined by the Valuation (Metropolis) Act, 1869.

32 & 33 Vict.
c. 37.

PART V.

NATIONAL DEBT.

16. In the financial year ending on the thirty-first day of March nineteen hundred and one that portion of the permanent annual charge for the National Debt, which is not required for the annual charges directed by the National Debt and Local Loans Act, 1887, or any other Act to be paid out of that charge, shall not be paid.

Suspension
of New
Sinking
Fund.
50 & 51 Vict.
c. 16.

17. In the financial year ending the thirty-first day of March nineteen hundred and one the payment of such portions of the instalments of the terminable annuities mentioned in the First Schedule to this Act as may be certified to the Treasury, under the hand of the Comptroller-General or Assistant Comptroller and of the Actuary of the National Debt Office, to be applicable to the

Suspension
of payments
on account of
capital of
terminable
annuities.

replacement of capital, shall be suspended, and the amount of the permanent annual charge for the National Debt shall accordingly in that year be reduced by an amount equal to the amount of the suspended payments.

Provided that the Treasury shall, by warrant to the Bank of England, prolong the terminable annuities for a year.

PART VI.

GENERAL.

Repeal.

18. The Acts specified in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule.

Short title.

19. This Act may be cited as the Finance Act, 1900.

SCHEDULES.

FIRST SCHEDULE.

TERMINABLE ANNUITIES.

1. Annuities created under the National Debt Act, 1883 (46 & 47 Vict. c. 51.), in exchange for the annuities specified in the schedule to that Act.

2. Annuity created under section 3 of the National Debt (Supplemental) Act, 1888 (51 & 52 Vict. c. 15.) (Chancery Funds Annuity).

3. Annuities created under section 17 (1) of the Finance Act, 1899 (62 & 63 Vict. c. 9.).

4. Annuity created under section 17 (2) of the Finance Act, 1899 (62 & 63 Vict. c. 9.), in exchange for a sum of fifteen millions two and three-quarters Consolidated Stock.

5. Annuity created under section 17 (4) of the Finance Act, 1899 (62 & 63 Vict. c. 9.), in exchange for a book debt of thirteen million pounds.

SECOND SCHEDULE.

REPEALS.

Session and Chapter.	Short Title.	Extent of Repeal.
57 & 58 Vict. c. 30. -	The Finance Act, 1894	Section four, from "or which under a disposition" to "descendant of the deceased," and from "but if any benefit" to the end of the section, as respects persons dying after the passing of this Act.
59 & 60 Vict. c. 28. -	The Finance Act, 1896	Section seventeen as respects persons dying after the passing of this Act.

CHAPTER 8.

An Act to remove Electoral Disabilities which may arise in the case of Members of the Reserve, Militia, and Yeomanry Forces, and in the case of Volunteers, by reason of absence on the Military Service of the Crown.
[25th May 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) A person shall not be disqualified for being registered for voting, either as a parliamentary or as a local government elector, in respect of a qualification for which any residence or inhabitancy is required, by reason only that during the whole or any part of the qualifying period he has as a member of the Reserve, Militia, Yeomanry, or Volunteer Forces, or otherwise as a volunteer, been absent on actual military service on behalf of the Crown, whether beyond the seas or not.

Absence of person in performance of military duties not to disqualify as elector.

(2.) A person so absent shall not be disqualified by reason of his wife or children having received poor relief during such absence.

(3.) The claim to be registered as a lodger may be made and signed, in the case of a person so absent, by any other person on his behalf, and the form of the claim and declaration may in those cases be modified accordingly.

(4.) In this Act the expression "a volunteer" shall include any person who is enlisted for temporary service only in connection with any war as a member of the regular forces.

2. This Act may be cited as the Electoral Disabilities (Military Service) Removal Act, 1900.

3. This Act shall apply only to absence during the continuance of the present war in South Africa.

Short title.
Duration of Act.

CHAPTER 9.

An Act to authorise the grant out of Police Funds of certain Allowances and Gratuities in respect of Police Reservists who are called out on Permanent Service.

[25th May 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: